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NIGERIA

Human Rights Developments

The situation in Nigeria improved substantially over the year. The interim government of Gen. Abdulsalami Abubakar that took office following the death of Gen. Sani Abacha in June 1998 departed to a large extent from the pattern of repression of the former government and oversaw a transition to the first civilian government for sixteen years. Between December 1998 and February 1999 Nigeria held local, state, and federal elections, leading to the inauguration of Gen. Olusegun Obasanjo (a former military ruler) as president on May 29, 1999. Immediately before the new government took office, General Abubakar repealed decrees allowing detention without trial, suspending constitutional guarantees of human rights, and barring the courts from reviewing executive acts. Nevertheless, serious concerns remained, including defects in the electoral process and the lack of a democratically drafted constitution, as well as the heritage of military rule-in particular, ongoing security force abuses.

Following local government elections held in December 1998, three parties passed the requirements to contest state and federal elections in the new year. Although most international and domestic observers of the elections welcomed their peaceful completion as an important step forward in the return of Nigeria to civilian government, some also noted the serious flaws in the process. These irregularities included vastly inflated figures for voter turnout, stuffing of ballot boxes, intimidation and bribery of both electoral officials and voters, and alteration of results at collation centres. The irregularities were widespread, but were particularly serious in the Niger Delta region. In addition, the party primaries, including the presidential primary of the Peoples' Democratic Party (PDP) which led to the selection of Obasanjo as the presidential candidate, were marked by blatant purchasing of votes. At local and state level, candidates selected by party members from the district were frequently peremptorily replaced at the instance of party leaders. Election tribunal proceedings to determine disputed results were similarly marked by fraud. The newly elected local, state, and national institutions immediately began to make their voices heard, though corruption scandals marked a number of those elected.

The constitution that came into force on May 29 was promulgated by General Abubakar only three weeks before the new government was inaugurated, following an unrepresentative drafting process that took place virtually without consultation with the Nigerian people. The 1999 constitution was finalized by a panel appointed by General Abubakar and adopted by the military Provisional Ruling Council. There was a consensus among Nigerian civil society organizations that the process by which the constitution was adopted was illegitimate and that the arrangements in relation to a number of crucial areas, including human rights and the rule of law, independence of the judiciary, the structure of the Nigerian federation and the system for revenue allocation and resource management, were not acceptable. Section 315(5) of the new constitution, for example, provided that "Nothing in the constitution shall invalidate" a set of laws, including the controversial National Security Agencies Act and Land Use Act, which it also stipulated could only be repealed or amended by a special majority of the National Assembly and Senate. The constitution failed to provide for the national human rights commission established under General Abacha, which had, against all the odds, been able to carry out some useful work under military rule. On September 9, the National Assembly announced the initiation of a review of the constitution.

All remaining high-profile political prisoners were released by General Abubakar before the handover to civilian rule, including military and civilian detainees convicted by military tribunals in unfair trials of involvement in alleged coup plots in 1990, 1995, and 1997. Sheikh Ibrahim El Zak-Zaky, a radical Muslim leader, was released in December 1998, after more than two years in detention. Several close associates of General Abacha arrested after his death remained in detention, facing charges linked to serious human rights violations and massive theft of government funds. In October, General Abacha's son Mohammed and security chief, Major Hamza al Mustapha, appeared in court charged with the June 1996 murder of Kudirat Abiola, wife of former presidential candidate Moshood K.O. Abiola who had himself died in detention in July 1998.

Immediately before the handover of power to President Obasanjo, General Abubakar announced the repeal of a number of military decrees that had permitted a wide range of acts in violation of international human rights law and the Nigerian constitution, including the notorious Decree No.2 of 1984, permitting indefinite detention without trial. Other laws continued to reflect their military origins and infringe on the rights of the Nigerian people, including the Public Order Act and the National Drug Law Enforcement Agency Decree. In July, in the case of Chima Ubani vs. Inspector General of Police, the Court of Appeal overruled a fifteen-year-old precedent to hold, retrospectively, that the powers contained in Decree No.2 were contrary to the African Charter on Human and Peoples' Rights.

On becoming head of state, President Obasanjo announced the appointment of a seven-member panel chaired by a retired Supreme Court judge, Justice Chukwudifu Oputa, to investigate "mysterious deaths" and assassinations and other human rights abuses under the military governments in office since 1984 and to make recommendations to redress past injustices and to prevent future violations. The panel was widely welcomed by human rights groups in Nigeria, though it was not clear exactly what mandate, powers, or budget it would have, or the date by which it would complete its investigation and present a report. In October, the scope of the investigation was moved back to 1966, therefore taking in the abuses of the Biafran war. The panel had already received submissions on several thousand cases, most of them from Ogoniland.

Obasanjo also appointed panels to look into appointments and contracts made during the period leading up to the handover to civilian rule, when billions were reportedly stolen, and into failed contracts and fraudulent land transactions under successive military governments. An anti-corruption bill was introduced to the national assembly, and steps taken to reduce corruption in the fuel distribution sector; for the first time in years Nigerian cities had gasoline freely available at the pump. Other panels were appointed to investigate "cult" violence at Obafemi Awolowo University in Ile-Ife and to look into means for poverty alleviation. Demonstrating a determination to bring the armed forces under control, Obasanjo announced the removal of several hundred army officers in June, and in August plans to cut the military in size from 80,000 to 50,000 over four years.

The new civilian government made commitments to respect the rule of law. The minister of justice announced that the government intended to respect court orders issued against it, unlike military governments in the past, and proposed reforms to the judiciary, including the reconstitution of the Judicial Services Commission. The government appointed a national prison reform committee to advise on prison conditions, and 1,400 prisoners were released soon after, adding to the several thousand prisoners freed from overcrowded jails over the previous year, many of them held for years without trial. Despite the releases, prison conditions remained life threatening. A reorganization of the police was promised, and a number of states disbanded the notoriously abusive paramilitary anti-crime units established under the military government, replacing them with units that did not include soldiers. The methods used by the new units seemed, however, to resemble those of their predecessors. On June 25, for example, Adewale Adeoye, a journalist with Punch newspaper and chairman of Journalists for Democratic Rights, was arrested by members of the Lagos State Rapid Response Squad, which replaced the paramilitary "Operation Sweep." He was beaten and detained overnight, together with sixteen other people apparently arbitrarily selected for the purpose of extracting bribes to be released. Across the country, the security forces continued to carry out more widespread and serious abuses, including summary executions and torture.

The rights of women in Nigeria were routinely violated. The Penal Code explicitly stated that assaults committed by a man on his wife were not an offence, if permitted by customary law and if "grievous

hurt" was not inflicted. Marital rape was not a crime. Child marriages remained common, especially in northern Nigeria, with consequent serious health effects for children subjected to early pregnancy or to intercourse prior to sexual maturity. There were continued reports of trafficking of Nigerian women and girls into Europe and other destinations. Women were denied equal rights in the inheritance of property. It was estimated that about 60 percent of Nigerian women were subjected to female genital cutting. Child labor, especially in domestic work, often completely unpaid, remained common.

In Ogoniland, home of the Movement for the Survival of the Ogoni People (MOSOP), of which Ken Saro-Wiwa was leader before his execution in November 1995, MOSOP was from late 1998 able to organize freely for the first time since 1993. The new government promised to return the bodies of Saro-Wiwa and his co-accused to their families. Elsewhere in the Niger Delta, however, unrest and repression escalated. Youths from the Ijaw ethnic group, the fourth largest in Nigeria, adopted the Kaiama Declaration on December 11, 1998, which claimed ownership of all natural resources found in Ijaw territory; other ethnic groups issued similar statements. There was an increase in kidnappings of oil company staff in hope of ransom payments, protests aimed at improving oil company and government response to community needs, and violence among neighboring communities over matters such as the location of local government headquarters or oil facilities, crucial in the distribution of oil resources. In response, large numbers of soldiers and paramilitary Mobile Police were deployed across the delta throughout the year. The security forces both failed to protect civilians from violence in many cases, and also themselves carried out serious violations of human rights, including summary executions. As elsewhere in Nigeria, security force action was often indiscriminate, or targeted at those who had not committed any crime but had protested oil operations in exercise of their rights to freedom of expression, assembly, and association. During a military crackdown in late December 1998 and early January 1999 in response to largely peaceful protests in support of the Kaiama Declaration, dozens of young men were killed, most of them unarmed. Others were tortured and inhumanely treated; many were arbitrarily detained for several weeks.

In another incident in January 1999, two communities in Delta State were attacked by soldiers, using a helicopter and boats commandeered from a facility operated by Chevron, following an alleged confrontation that took place at a nearby Chevron drilling rig. More than fifty people may have died in these incidents. Chevron made no public protest at the killings. In May and early June 1999, violence flared up once again in and around Warri, Delta State, where there had been serious conflict since 1997 among the Ijaw, Itsekiri, and Urhobo ethnic groups. As in the case of similar violence that flared up in July between the Hausa and Yoruba ethnic groups in both Sagamu, in the south west, and Kano, in the north of the country, there were persistent allegations that senior figures in the military had fueled the conflict. In September 1999, soldiers shot dead tens of civilians in Yenagoa, capital of Bayelsa State, following confrontations with protesting youths.

President Obasanjo visited the delta area in June 1999 and held discussions with local leaders. He promised to bring greater development to the delta, and introduced to the National Assembly a bill to establish a Niger Delta Development Commission. Leaders of the ethnic groups based in the Niger Delta, however, rejected the bill for failing to address their concerns surrounding revenue allocation and resource control. In September, Obasanjo visited the delta again, when protests by local people brought exports from the new liquefied natural gas terminal at Bonny to a halt for several days.

More than ten thousand Nigerian troops were deployed in Sierra Leone as the major part of the Economic Community of West African States Monitoring Group (ECOMOG) peacekeeping force. During the January rebel offensive against Freetown, and at other times, they were responsible for human rights violations against rebels and civilians, including summary executions. Nevertheless, the presence of the Nigerian soldiers protected many civilians against atrocities committed on an enormous scale by the rebels. In August, Obasanjo ordered the progressive withdrawal of Nigerian soldiers from Sierra Leone, unless the U.N. was prepared to pay their costs.

Defending Human Rights

Nigeria's numerous and sophisticated human rights groups were able to operate freely throughout the year, in welcome contrast to the repression under the government of General Abacha. Several dozen human rights, pro-democracy, and other nongovernmental groups, joined together to form the

Transitional Monitoring Group (TMG), which deployed more than 10,000 election observers throughout the country for the various stages of the election process. The TMG produced by far the most useful analysis of the elections, and continued to operate afterward, to monitor progress towards democratic reform. Many individual human rights groups were active in proposing legal and other reforms to the new government. On May 6, 1999, Mazino Uzuazebe, head of a Kaduna-based organization, Martin Luther King's People, was shot dead at his home. The motivation for the killing was not clear.

The government-appointed National Human Rights Commission, created in 1996, held or attended a number of meetings to discuss human rights issues, some of them arranged by nongovernmental human rights groups such as the Constitutional Rights Project. The commission also recommended reforms to General Abubakar, while he was head of state, including the repeal of repressive decrees such as those allowing detention without charge, and (unsuccessfully) the inclusion of provision for the commission in the new constitution. By October, the commission had yet to take advantage of the new government to establish a higher profile for its work.

The Role of the International Community

A large number of international delegations from the U.N., OAU, E.U., Commonwealth, Francophonie, and other bodies observed the elections, the greatest number being present for the presidential elections in February. Although some international delegations, notably the United States' Carter Center and National Democratic Institute, expressed serious concern over defects in the process, most accepted the results fairly uncritically. While still president-elect, General Obasanjo went on an extensive tour of European, Asian, and African countries and the United States, seeking support for his incoming administration. A wide range of heads of state and other dignitaries attended his inauguration as president in May. Both the U.S. and the European Union and its member states began to reengage with Nigeria following the installation of the new government, focusing especially on assisting reform of civil-military relations.

Reestablishing potentially the most important bilateral relationship on the continent, President Nelson Mandela of South Africa visited Nigeria in January to attend the summit of the Economic Community of West Africa States; President Obasanjo attended President Thabo Mbeki's inauguration in South Africa in June, his first foreign trip as head of state; and in October the first meeting of a South Africa-Nigeria binational commission was held.

The Commonwealth

Nigeria's suspension from the Commonwealth, imposed in 1995, was lifted with the handover of power to a civilian government, in accordance with the recommendation of the Commonwealth Ministerial Action Group (CMAG), meeting in April. A Commonwealth delegation observed the elections, and gave technical assistance to the electoral commission.

United Nations and Bretton Woods Institutions

The U.N. special rapporteur on the situation of human rights in Nigeria, Soli Sorabjee, was finally allowed to visit the country at the end of November 1998. His report to the 1999 Commission on Human Rights noted improvements in the situation and made recommendations for further reforms. The commission voted to discontinue its consideration of the situation in Nigeria and did not renew the mandate of the special rapporteur. Like other international bodies, the U.N. provided Nigeria with technical assistance and sent an observer mission during the elections. U.N. Secretary-General Kofi Annan visited Nigeria in July and met with President Obasanjo.

Several World Bank delegations visited Nigeria following the transfer of power to a civilian government, including bank president James Wolfensohn in October, discussing poverty alleviation and provision of basic services, privatization, reform of the procurement system, as well as the restructuring of the oil sector. In May, after international creditors queried a missing U.S.\$2.7 billion from Nigeria's foreign reserves, Nigeria committed itself to an economic program monitored by the International Monetary Fund and to transparency in the management of public resources, in exchange

for future consideration of IMF credits. Another IMF delegation visited in July and offered a U.S.\$1 billion standby loan pinned on clear evidence of market reforms.

A "direct contacts mission" from the International Labor Organization (ILO) visited Nigeria in 1998 and reported to the ILO Governing Body in November, noting improvements in the situation but recommending further steps to ensure respect for freedom of association. The Governing Body voted to suspend a commission of inquiry appointed to consider Nigeria's respect for freedom of association. In March, the ILO Committee on Freedom of Association considered longstanding complaints against Nigeria and welcomed the release of trade unionists, repeal of certain decrees limiting trade union activity, and the election in January of representatives to the National Labour Congress to replace a sole administrator appointed by the previous government. The committee recommended further reform to ensure freedom of association, in particular the system of trade union monopoly established by the Trade Unions Act.

European Union and its Member States

In November 1998, the E.U. Council of Ministers voted to repeal all sanctions imposed on Nigeria following the November 1995 executions of Ken Saro-Wiwa and eight other minority rights activists, except those relating to arms sales and military cooperation. In June 1999, the E.U. lifted all remaining sanctions and resolved to focus future cooperation on poverty alleviation, promotion of democracy and good governance, anti-corruption measures, and the integration of Nigeria into the global economy.

The E.U. and member states, especially the United Kingdom, gave substantial support to the transition program, including assisting in funding the TMG and the electoral commission, and sending an election observation team of one hundred people. Reportedly, a number of members of the team protested the overly favorable assessment given in the official E.U. statement on the elections. General Obasanjo traveled to the U.K. and France during March, and met with Prime Minister Tony Blair and President Jacques Chirac. Foreign Secretary Robin Cook traveled to Nigeria following the elections, and a five-man British military team visited in May to assess the needs for military reform, backed by a commitment to spend £750,000 (about U.S.\$1.2 million) in a first tranche of assistance. The Department for International Development also committed funds to poverty alleviation and community based projects. President Chirac visited Nigeria in July, as part of a tour of five African states, and agreed with President Obasanjo to set up a joint economic commission.

United States

The U.S. Agency for International Development gave substantial funding to the transition program, including to the TMG. The National Democratic Institute, the International Republican Institute, and the Carter Center sent delegations to observe the elections. In May, the National Endowment for Democracy presented its annual democracy award to the TMG.

With the inauguration of a civilian government at the end of May, U.S. sanctions against Nigeria were lifted, allowing for the resumption of military assistance to Nigeria, including under the International Military Education and Training (IMET) program. Export-Import Bank financing for U.S. exports also resumed for Nigeria. Although Nigeria was in March deemed not to be in compliance with requirements for counter-narcotics certification under Section 481 of the Foreign Assistance Act (FAA), the administration issued a national interest waiver, thus allowing the U.S. to support assistance to Nigeria in six multilateral development banks and to restore FAA and Arms Control Export Act assistance to Nigeria. Although direct flights to Nigeria remained banned due to safety concerns, progress in addressing these concerns was reported.

Secretary of State Albright hailed Nigeria's transition as one of the most vital in the world for U.S. national interests, and a large number of U.S. officials visited Nigeria following the end of military rule. U.S. Under-Secretary of State for Political Affairs Thomas Pickering visited in May. A large Interagency Assessment Team, led by Deputy Assistant Secretary of State Amb. Howard Jeter traveled to the country in June. In July, a delegation from the Department of Transportation visited. In August, Energy Secretary Bill Richardson visited Nigeria and signed a memorandum of understanding with Nigerian Energy Minister Bola Ige which called for Nigeria to begin privatizing state energy

companies and remove trade and investment barriers. In return, the U.S. would provide short-term aid to help alleviate oil, gas, and electricity shortages. An eight-man military team visited in August to explore possible assistance to the Nigerian armed forces in connection with professionalization and establishing civil-military relations. In October, Secretary of State Albright traveled to Nigeria, and pledged greater financial support for its ongoing transition.

U.S. assistance, which totaled some U.S.\$25 million in FY 1999, focused on health issues, civil-military relations, democratic institution-building, and strengthening civil society, as well as development projects in the Niger Delta. The House Committee on International Relations Subcommittee on Africa and the Senate Foreign Affairs Committee held hearings on Nigeria in July and October, respectively, at which Human Rights Watch testified.

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